

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 01/08/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1.	9:00 AM	CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD		
*HEARING ON MOTION FOR DISCOVERY TO COMPEL DISCOVERY RESPONSES		
FILED BY: VIGIL, THEODORE JOSEPH		
<u>*TENTATIVE RULING:*</u>		

The Motion to Compel Discovery Responses and for Sanctions CANNOT BE CONSIDERED DUE TO THE COURT'S AUGUST 7, 2025, ORDER STAYING THE PROCEEDINGS.

Plaintiff, Theodore-Joseph Vigil filed his complaint against Defendant, Future Ford of Concord, on January 8, 2025, asserting claims related to his purchase of a 2022 Ford Explorer in September 2024. On March 21, 2025, Defendant noticed a motion to compel binding arbitration and stay the case; the motion was set for hearing on July 18, 2025. On April 1, 2025, and April 21, 2025, Plaintiff propounded several discovery requests to Defendant, due within the statutory time limits, typically

within 30 days. (See Cal. Code of Civ. Proc. §§2030.260, 2033.250, and 2031.260.) On May 1, 2025, Defendant filed an ex parte request to stay the case pending the disposition of the motion to compel binding arbitration which was scheduled past Defendant's deadline for providing discovery. That same day, the court ordered the matter stayed, including discovery, except discovery related to the motion to compel arbitration. (See Order Granting Defendant Future Ford of Concord's Ex Parte Application for an Order Staying the Instant Case Pending Resolution of its Motion to Compel Arbitration, filed May 1, 2025, p. 1.)

On July 18, 2025, the motion to compel arbitration and to stay the case was heard by the Honorable Judge John M. True III and was granted; the case was stayed in full as of that date. The order was signed by the Honorable Judge Danielle Douglas on August 7, 2025, pursuant to California Code of Civil Procedure section 635, and filed August 11, 2025. Nonetheless, on August 13, 2025, Plaintiff filed a motion to compel discovery responses and for sanctions.

While Plaintiff has filed a motion for reconsideration of the order granting Defendant's motion to compel arbitration, set before the court on March 20, 2026, this does not change the court's current order staying the proceedings including the discovery motion before this judge.

This court recognizes that pursuant to the recently enacted California Code of Civil Procedure section 1294, when a litigant perfects an appeal from an order dismissing or denying a petition to compel arbitration, the proceedings in the trial court are not automatically stayed during the pendency of the appeal rather it is now within the court's discretion to issue a stay. (Cal. Code of Civil Procedure §1294). This exception to an automatic stay, however, is not applicable here. There is no appeal pending, nor did the court dismiss or deny the petition to compel arbitration, indeed the motion to compel arbitration was granted. As such, the court's August 7, 2025, signed order "to submit this matter to arbitration in accordance with the terms of the Arbitration Provision in the RISC" and staying "this matter...in full, pending conclusion of the arbitration" is binding on this court and all discovery motions are stayed until the conclusion of arbitration. (See Order Granting Defendant's Motion to Compel Binding Arbitration Pursuant to Contract and Stay this Case, signed August 7, 2025, filed August 11, 2025, p. 7.)

Plaintiff filed his motion to compel discovery responses and for sanctions after the court stayed the proceedings in full. This court cannot consider the motion because of the stay. Furthermore, discovery matters are customarily handled in the arbitration process (see e.g. Cal. Code of Civ. Proc. §1283.05) but if there are additional issues remaining following arbitration, those issues may be addressed through appropriate motions, if necessary, or at further status conferences.

Courtroom Clerk's Session

2. 1:30 PM CASE NUMBER: C23-02910
CASE NAME: JESUS TORRES VS. JORODA, INC.
SETTLEMENT CONFERENCE IN-PERSON
FILED BY:
TENTATIVE RULING:

Counsel and parties authorized to settle the matter are to appear in Department 20 for good faith settlement discussions.